

Riyazuddin v. State of U.P.

Allahabad High Court · Division Bench · 11 October 2018 · Writ - C No. 34642 of 2018 · **Writ disposed; objections and restoration left to Executive Engineer.**

HEADNOTE

A writ against a still-provisional electricity assessment is not decided on merits. Under the U.P. Electricity Supply Code, 2005 the consumer may object to the provisional assessment, and the distribution authority makes a final assessment only after considering those objections. The petitioner was given two weeks to object; the Executive Engineer is to pass the final assessment expeditiously in accordance with law, if possible within a month. A separate representation for restoration of supply, if moved, is to be decided by speaking order.

FACTUAL SUMMARY

Riyazuddin, a consumer, challenged before the Allahabad High Court a provisional assessment of electricity dues dated 26 July 2018 issued by the distribution licensee. The assessment notice itself called upon him to file objections. His counsel told the Court that no final assessment had yet been passed. Supply had been disconnected, and he also wanted the connection restored. Counsel for respondent no. 2, the distribution licensee, was heard on the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objections to provisional assessment

HOLDING

A consumer aggrieved by a provisional assessment of electricity dues has a right under the U.P. Electricity Supply Code, 2005 to file objections; final assessment is made only after those objections are considered. The writ is disposed with liberty to object within two weeks, the Executive Engineer to pass the final assessment expeditiously in accordance with law (if possible within a month). A separate representation for restoration of supply, if moved, shall be considered by the Executive Engineer by a speaking order. ¶ 1

FLAG Court cited the 2005 Code generally, without numbering 6.8; 6.8 is the Code's provisional/final assessment scheme.

PRINCIPLE TAGS

opportunity-before-final-assessment A writ against a still-provisional electricity assessment is not decided on merits. Under the U.P. Electricity Supply Code, 2005 the consumer may object to the provisional assessment, and the distribution authority makes a final assessment only after considering those objections.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE PROVISIONAL ASSESSMENT DATED 26.7.2018

Writ not decided on the merits of the assessment. ¶ 1

NOT DECIDED — ENTITLEMENT TO RESTORATION OF ELECTRICITY CONNECTION

Left to a separate representation before the Executive Engineer. ¶ 1

